

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1024

Introduced by Murman, 38; Ballard, 21; Clements, 2; Lippincott, 34;
Lonowski, 33; Storer, 43.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to schools; to amend sections 79-724 and
- 2 79-760.01, Reissue Revised Statutes of Nebraska; to require
- 3 instruction on the history of communism as prescribed; to provide
- 4 duties to school districts and to committees on American civics; to
- 5 incorporate the history of communism into academic content
- 6 standards; to provide duties to the State Board of Education; to
- 7 harmonize provisions; and to repeal the original sections.
- 8 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Beginning with school year 2027-28, each school
2 district, in consultation with the State Department of Education, shall
3 include instruction on the history of communism within the social studies
4 curriculum. Such instruction shall be age-appropriate and include:

5 (a) The history of communism in the United States, including
6 domestic communist movements and their associated histories and tactics;

7 (b) Atrocities committed in foreign countries in the name of
8 communism;

9 (c) Comparative discussion of political ideologies, such as
10 communism and totalitarianism, that conflict with the principles of
11 freedom and democracy essential to the founding principles of the United
12 States' representative republic system;

13 (d) The increasing threat of communism in the United States and its
14 allies through the 20th century, the events of the Cultural Revolution in
15 the People's Republic of China, the history of the Soviet Union, and the
16 mass killings that have occurred under communist regimes;

17 (e) The suppression and persecution of various religious faiths
18 under communist regimes; and

19 (f) The economic, industrial, and political events that have
20 preceded communist revolutions.

21 **Sec. 2.** Section 79-724, Reissue Revised Statutes of Nebraska, is
22 amended to read:

23 79-724 It is the responsibility of society to ensure that youth are
24 given the opportunity to become competent, responsible, patriotic, and
25 civil citizens to ensure a strong, stable, just, and prosperous America.
26 Such a citizenry necessitates that every member thereof be knowledgeable
27 of our nation's history, government, geography, and economic system. The
28 youth in our state should be committed to the ideals and values of our
29 country's democracy and the constitutional republic established by the
30 people. Schools should help prepare our youth to make informed and
31 reasoned decisions for the public good. Civic competence is necessary to

1 sustain and improve our democratic way of life and must be taught in all
2 public, private, denominational, and parochial schools. A central role of
3 schools is to impart civic knowledge and skills that help our youth to
4 see the relevance of a civic dimension for their lives. Students should
5 be made fully aware of the liberties, opportunities, and advantages we
6 possess and the sacrifices and struggles of those through whose efforts
7 these benefits were gained. Since young people are most susceptible to
8 the acceptance of principles and doctrines that will influence them
9 throughout their lives, it is one of the first duties of our educational
10 system to conduct its activities, choose its textbooks, and arrange its
11 curriculum in such a way that the youth of our state have the opportunity
12 to become competent, responsible, patriotic, and civil American citizens.

13 (1) The school board of each school district shall, at the beginning
14 of each calendar year, appoint from its members a committee of three, to
15 be known as the committee on American civics, which shall:

16 (a) Hold no fewer than two public meetings annually, at least one
17 when public testimony is accepted;

18 (b) Keep minutes of each meeting showing the time and place of the
19 meeting, which members were present or absent, and the substance and
20 details of all matters discussed;

21 (c) Examine and ensure that the social studies curriculum used in
22 the district is aligned with section 1 of this act and the social studies
23 standards adopted pursuant to section 79-760.01 and teaches foundational
24 knowledge in civics, history, economics, financial literacy, and
25 geography;

26 (d) Review and approve the social studies curriculum to ensure that
27 it stresses the services of the men and women who played a crucial role
28 in the achievement of national independence, establishment of our
29 constitutional government, and preservation of the union and includes the
30 incorporation of multicultural education as set forth in sections 79-719
31 to 79-723 in order to instill a pride and respect for the nation's

1 institutions and not be merely a recital of events and dates;

2 (e) Ensure that any curriculum recommended or approved by the
3 committee on American civics is made readily accessible to the public and
4 contains a reference to this section;

5 (f) Ensure that the district develops and utilizes formative,
6 interim, and summative assessments to measure student mastery of the
7 social studies standards adopted pursuant to section 79-760.01;

8 (g) Ensure that the social studies curriculum in the district
9 incorporates one or more of the following for each student:

10 (i) Administration of a written test that is identical to the entire
11 civics portion of the naturalization test used by United States
12 Citizenship and Immigration Services prior to the completion of eighth
13 grade and again prior to the completion of twelfth grade with the
14 individual score from each test for each student made available to a
15 parent or guardian of such student; or

16 (ii) Attendance or participation between the commencement of eighth
17 grade and completion of twelfth grade in a meeting of a public body as
18 defined by section 84-1409 followed by the completion of a project or
19 paper in which each student demonstrates or discusses the personal
20 learning experience of such student related to such attendance or
21 participation; or

22 (iii) Completion of a project or paper and a class presentation
23 between the commencement of eighth grade and the completion of twelfth
24 grade on a person or persons or an event commemorated by a holiday listed
25 in subdivision (6) of this section or on a topic related to such person
26 or persons or event; and

27 (h) Take all such other steps as will assure the carrying out of the
28 provisions of this section and provide a report to the school board
29 regarding the committee's findings and recommendations.

30 (2) All social studies courses approved for grade levels as provided
31 by this section shall include and adequately stress contributions of all

1 ethnic groups to (a) the development and growth of America into a great
2 nation, (b) art, music, education, medicine, literature, science,
3 politics, and government, and (c) the military in all of this nation's
4 wars.

5 (3) All grades of all public, private, denominational, and parochial
6 schools, below the sixth grade, shall devote at least one hour per week
7 to exercises or teaching periods for the following purpose:

8 (a) The discussion of noteworthy events pertaining to American
9 history or the exceptional acts of individuals and groups of Americans;

10 (b) The historical background, memorization, and singing of
11 patriotic songs such as the Star-Spangled Banner and America the
12 Beautiful;

13 (c) The development of respect for the American flag as a symbol of
14 freedom and the sacrifices of those who secured that freedom; and

15 (d) Instruction as to proper conduct in the presentation of the
16 American flag.

17 (4) In at least two of the three grades from the fifth grade to the
18 eighth grade in all public, private, denominational, and parochial
19 schools, time shall be set aside for the teaching of American history
20 from the social studies curriculum, which shall be taught in such a
21 manner that all students are given the opportunity to (a) become
22 competent, responsible, patriotic, and civil citizens who possess a deep
23 understanding of and respect for both the Constitution of the United
24 States and the Constitution of Nebraska and (b) prepare to preserve,
25 protect, and defend freedom and democracy in our nation and our world.

26 (5) In at least two courses in every high school, time shall be
27 devoted to the teaching of civics and American history as outlined in the
28 social studies standards adopted pursuant to section 79-760.01, during
29 which specific attention shall be given to the following matters:

30 (a) The Declaration of Independence, the United States Constitution,
31 the Constitution of Nebraska, and the structure and function of local

1 government in this state;

2 (b) The benefits and advantages of representative government, the
3 rights and responsibilities of citizenship in our government, and the
4 dangers and fallacies of forms of government that restrict individual
5 freedoms or possess antidemocratic ideals such as, but not limited to,
6 Nazism and communism;

7 (c) The duties of citizenship, which include active participation in
8 the improvement of a citizen's community, state, country, and world and
9 the value and practice of civil discourse between opposing interests; and

10 (d) The application of knowledge in civics, history, economics,
11 financial literacy, and geography to address societal issues.

12 (6) Appropriate patriotic exercises suitable to the occasion shall
13 be held under the direction of the superintendent in every public,
14 private, denominational, and parochial school on George Washington's
15 birthday, Abraham Lincoln's birthday, Dr. Martin Luther King, Jr.'s
16 birthday, Native American Heritage Day, Constitution Day, Memorial Day,
17 Veterans Day, and Thanksgiving Day, or on the day or week preceding or
18 following such holiday, if the school is in session.

19 (7) Every school board, the State Board of Education, and the
20 superintendent of each school district in the state shall be held
21 directly responsible in the order named for carrying out this section.
22 Neglect thereof by any employee may be considered a cause for dismissal.

23 **Sec. 3.** Section 79-760.01, Reissue Revised Statutes of Nebraska, is
24 amended to read:

25 79-760.01 (1) The State Board of Education shall adopt measurable
26 academic content standards for at least the grade levels required for
27 statewide assessment pursuant to section 79-760.03. The standards shall
28 cover the subject areas of reading, writing, mathematics, science, and
29 social studies.

30 (2)(a) The board shall also adopt measurable academic content
31 standards for the following as part of the social studies standards:

1 (i) Financial literacy; and

2 (ii) Education on the Holocaust and other acts of genocide as
3 recognized by the Congress of the United States or the United Nations as
4 of January 1, 2022; and -

5 (iii) On or before January 1, 2027, instruction on the history of
6 communism as require pursuant to section 1 of this act.

7 (b) On or before March 1, 2024, the board shall also adopt
8 measurable academic content standards for computer science and technology
9 education under the mathematics, science, or career and technical
10 education standards.

11 (3) Academic content standards adopted or recommended pursuant to
12 this section shall be sufficiently clear and measurable to be used for
13 testing student performance with respect to mastery of the content
14 described in the state standards.

15 (4) The State Board of Education shall develop a plan to review and
16 update standards for each subject area every seven years. The state board
17 plan shall include a review of commonly accepted standards adopted by
18 school districts.

19 **Sec. 4.** Original sections 79-724 and 79-760.01, Reissue Revised
20 Statutes of Nebraska, are repealed.